UNITED STATES PATENT AND TRADEMARK OFFICE

UNITED STATES DEPARTMENT OF COMMERCE
United States Patent and Trademark Office
Address: COMMISSIONER FOR PATENTS
P.O. Box 1450
Alexandria, Virginia 22313-1450
www.uspto.gov

APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
18/049,014	10/24/2022	Leo S. Chang	201882-513365/210055US03	2530

126323 7590 02/19/2025

Honigman LLP/Nike
650 Trade Centre Way
Suite 200
Kalamazoo, MI 49002-0402

EXAMINER	
MARCHEWKA, MATTHEW R	

ART UNIT	PAPER NUMBER
3732	

NOTIFICATION DATE	DELIVERY MODE
02/19/2025	ELECTRONIC

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

Patents@honigman.com
araymond@honigman.com
nike_docketing@cardinal-ip.com

Office Action Summary	Application No. 18/049,014	Applicant(s) Chang et al.	
	Examiner MATTHEW R MARCHEWKA	Art Unit 3732	AIA (FITF) Status Yes

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTHS FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

1)☑ Responsive to communication(s) filed on 03 December 2024.

☐ A declaration(s)/affidavit(s) under **37 CFR 1.130(b)** was/were filed on _____.

2a)☑ This action is **FINAL.** 2b) ☐ This action is non-final.

3)☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on _____; the restriction requirement and election have been incorporated into this action.

4)☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims*

5) ☑ Claim(s) 1-20 is/are pending in the application.

5a) Of the above claim(s) _____ is/are withdrawn from consideration.

6) ☐ Claim(s) _____ is/are allowed.

7) ☑ Claim(s) 1-20 is/are rejected.

8) ☐ Claim(s) _____ is/are objected to.

9) ☐ Claim(s) _____ are subject to restriction and/or election requirement

* If any claims have been determined allowable, you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information, please see http://www.uspto.gov/patents/init_events/pph/index.jsp or send an inquiry to **PPHfeedback@uspto.gov.**

Application Papers

10)☑ The specification is objected to by the Examiner.

11)☑ The drawing(s) filed on 03 December 2024 is/are: a)☐ accepted or b)☑ objected to by the Examiner.

Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).

Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

Priority under 35 U.S.C. § 119

12)☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).

Certified copies:

a)☐ All b)☐ Some** c)☐ None of the:

1.☐ Certified copies of the priority documents have been received.

2.☐ Certified copies of the priority documents have been received in Application No. _____.

3.☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

** See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

1) ☑ Notice of References Cited (PTO-892)

2) ☑ Information Disclosure Statement(s) (PTO/SB/08a and/or PTO/SB/08b) Paper No(s)/Mail Date _____.

3) ☐ Interview Summary (PTO-413) Paper No(s)/Mail Date _____.

4) ☐ Other: _____.

DETAILED ACTION

Notice of Pre-AIA or AIA Status

1. The present application, filed on or after March 16, 2013, is being examined under the first inventor to file provisions of the AIA.

Response to Amendment

2. The amendments filed with the written response received on December 3, 2024, have been considered and an action on the merits follows. Any objections and rejections previously put forth in the Office Action dated September 5, 2024, are hereby withdrawn unless specifically noted below.

Status of the Claims

3. As directed by the amendment received on December 3, 2024, claims 1-3, 6, 8-9, 11-13, 16, and 18-19 have been amended. Accordingly, claims 1-20 are currently pending in this application.

Drawings

4. The drawings are objected to because Figs. 3, 4, 17, and 18 each appear to show an improper exploded view. The exploded view should include a bracket or line to show the relationship or order of assembly of various parts.

5. Corrected drawing sheets in compliance with 37 CFR 1.121(d) are required in reply to the Office action to avoid abandonment of the application. Any amended replacement drawing sheet should include all of the figures appearing on the immediate prior version of the sheet, even if only one figure is being amended. The figure or figure number of an amended drawing should not be labeled as “amended.” If a drawing figure is to be canceled, the appropriate figure must be removed from the replacement sheet,

and where necessary, the remaining figures must be renumbered and appropriate changes made to the brief description of the several views of the drawings for consistency. Additional replacement sheets may be necessary to show the renumbering of the remaining figures. Each drawing sheet submitted after the filing date of an application must be labeled in the top margin as either "Replacement Sheet" or "New Sheet" pursuant to 37 CFR 1.121(d). If the changes are not accepted by the examiner, the applicant will be notified and informed of any required corrective action in the next Office action. The objection to the drawings will not be held in abeyance.

Specification – Disclosure

6. The use of the term "Banbury®", which is a trade name or a mark used in commerce, has been noted in this application. The term should be accompanied by the generic terminology; furthermore, the term should be capitalized wherever it appears or, where appropriate, include a proper symbol indicating use in commerce such as ™, SM , or ® following the term. For example, the above term should instead read "BANBURY®".

Although the use of trade names and marks used in commerce (i.e., trademarks, service marks, certification marks, and collective marks) are permissible in patent applications, the proprietary nature of the marks should be respected and every effort made to prevent their use in any manner which might adversely affect their validity as commercial marks.

Claim Objections

7. **Claim 1** is objected to because at line 4, "the sole structure and including" should read "the sole structure, the first compressible midsole layer including".

8. **Claim 11** is objected to because at line 4, "the sole structure and including" should read "the sole structure, the compressible midsole layer including".

Appropriate correction is required.

Claim Rejections - 35 USC § 112(b)

9. The following is a quotation of 35 U.S.C. 112(b):
(b) CONCLUSION.—The specification shall conclude with one or more claims particularly pointing out and distinctly claiming the subject matter which the inventor or a joint inventor regards as the invention.

The following is a quotation of 35 U.S.C. 112 (pre-AIA), second paragraph:
The specification shall conclude with one or more claims particularly pointing out and distinctly claiming the subject matter which the applicant regards as his invention.

10. **Claims 6-7 and 16-17 are rejected under 35 U.S.C. 112(b) or 35 U.S.C. 112 (pre-AIA), second paragraph, as being indefinite for failing to particularly point out and distinctly claim the subject matter which the inventor or a joint inventor (or for applications subject to pre-AIA 35 U.S.C. 112, the applicant), regards as the invention.**

Claim 6 recites the limitation "an oblique angle relative to a central axis that extends through a thickness of the first bladder" at lines 2-3. It is unclear exactly where and through which surface the thickness is being measured and oriented (e.g., horizontal or vertical). Therefore, the metes and bounds of the claim are unclear, and the claim is rendered indefinite. It is suggested that the limitation instead read "an oblique angle relative to a central axis of the first bladder, the central axis extending through a thickness of the first bladder measured between a top side and a bottom side of the first bladder". For the purposes of examination, the limitation will be interpreted as best can be understood according to the suggested language above when applying prior art.

Claim 16 recites the limitation "an oblique angle relative to a central axis that extends through a thickness of the first bladder" at lines 2-3. It is unclear exactly where and through which surface the thickness is being measured and oriented (e.g., horizontal or vertical). Therefore, the metes and bounds of the claim are unclear, and the claim is rendered indefinite. It is suggested that the limitation instead read "an oblique angle relative to a central axis of the first bladder, the central axis extending through a thickness of the first bladder measured between a top side and a bottom side of the first bladder". For the purposes of examination, the limitation will be interpreted as best can be understood according to the suggested language above when applying prior art.

Claims 7 and 17 are similarly rejected for being dependent on a rejected claim.

Claim Rejections - 35 USC § 103

11. In the event the determination of the status of the application as subject to AIA 35 U.S.C. 102 and 103 (or as subject to pre-AIA 35 U.S.C. 102 and 103) is incorrect, any correction of the statutory basis (i.e., changing from AIA to pre-AIA) for the rejection will not be considered a new ground of rejection if the prior art relied upon, and the rationale supporting the rejection, would be the same under either status.

12. The following is a quotation of 35 U.S.C. 103 which forms the basis for all obviousness rejections set forth in this Office action:

> A patent for a claimed invention may not be obtained, notwithstanding that the claimed invention is not identically disclosed as set forth in section 102, if the differences between the claimed invention and the prior art are such that the claimed invention as a whole would have been obvious before the effective filing date of the claimed invention to a person having ordinary skill in the art to which the claimed invention pertains. Patentability shall not be negated by the manner in which the invention was made.

13. This application currently names joint inventors. In considering patentability of the claims the examiner presumes that the subject matter of the various claims was commonly owned as of the effective filing date of the claimed invention(s) absent any evidence to the contrary. Applicant is advised of the obligation under 37 CFR 1.56 to point out the inventor and effective filing dates of each claim that was not commonly owned as of the effective filing date of the later invention in order for the examiner to consider the applicability of 35 U.S.C. 102(b)(2)(C) for any potential 35 U.S.C. 102(a)(2) prior art against the later invention.

14. **Claims 1-20 (claims 6-7 and 16-17, as best can be understood) are rejected under 35 U.S.C. 103 as being unpatentable over US 2018/0213886 to Connell et al. (hereinafter, "Connell") in view of US 2020/0205514 to VanDomelen (hereinafter, "VanDomelen").**

Regarding **claim 1**, Connell teaches *a sole structure for an article of footwear* (See Connell, Figs. 54-57B; sole structure (14k)), *the sole structure comprising: a first compressible midsole layer* (See Connell, Figs. 54-57A; first cushion ($152k_2$, $154k_2$) extending between anterior and posterior ends of sole structure and made of compressible polymer foam; [0297]) *and including an upper side, a bottom side formed on an opposite side from the upper side* (See Connell, Figs. 55 and 57B; first cushion ($152k_2$, $154k_2$) includes an upper foot-facing side and a bottom ground-facing side opposite from the upper side), *and a recess formed in the upper side* (See Connell, Figs. 55 and 57b; gap (156k) formed in upper surface of cushion ($152k_2$, $154k_2$)*; a first bladder disposed within the recess adjacent to a lateral side of the sole structure* (See Connell, Figs. 54-57A; chamber (194k) within recess adjacent lateral side of sole

structure)*; and a second bladder disposed within the recess adjacent to a medial side of the sole structure* (See Connell, Figs. 54-57A; chamber (190k) within recess adjacent medial side of sole structure).

That said, Connell is silent to the first compressible midsole layer *extending continuously from an anterior end of the sole structure to a posterior end of the sole structure.*

However, VanDomelen, in a related sole structure art, is directed to a sole structure including a foam element extending from forefoot region to heel region, the foam element including a recess in the forefoot region for housing a bladder (See VanDomelen, Figs. 17-20; abstract). More specifically, VanDomelen teaches the first compressible midsole layer *extending continuously from an anterior end of the sole structure to a posterior end of the sole structure* (See VanDomelen, Fig. 20; midsole foam element (206) extends to form floor of recess (226) and extend continuously from anterior end to posterior end of sole structure; Examiner notes that "floor" of the recess is used to refer to a surface of a recess opposite the recess opening regardless of direction of recess extension; midsole foam element (206) forms a unitary structure and forms seat/socket for anterior cushioning arrangement (208b); [0079]).

It would have been obvious for one of ordinary skill in the art at the time of filing of the invention to form the first cushion (first segment $152k_2$, second segment $154k_2$) of Connell as a unitary structure, wherein the cushion segments are connected across the bottom floor of the recess, and wherein the floor forms a seat/socket for the anterior chambers as disclosed by VanDomelen for a variety of reasons including for example, but not limited to, reducing a number of individual components and production steps

required during manufacturing of the sole structure product and/or providing additional cushioning material beneath the foot of the wearer, and further since it has been held that forming in one piece an article which has formerly been formed in two pieces and put together involves only routine skill in the art. See MPEP 21044.04(V)(B).

Regarding **claim 2**, the modified sole structure of Connell (i.e., Connell in view of VanDomelen, as discussed with respect to claim 1 above) further teaches *wherein the recess extends across an entire width of the first compressible midsole layer from the medial side to the lateral side* (See Connell, Figs. 54-55 and 57A; recess formed at gap (156k) extends across entire width of first cushion from medial to lateral sides).

Regarding **claim 3**, the modified sole structure of Connell (i.e., Connell in view of VanDomelen, as discussed with respect to claim 1 above) further teaches *wherein the recess is disposed in a forefoot region of the first compressible midsole layer* (See Connell, Figs. 54-55 and 57B; recess formed at gap (156k) is disposed in a forefoot region of first cushion; Examiner notes that the term "region" is very broad and merely means "any large, indefinite, and continuous part of a surface or space" (Defn. No. 1 of "Collins English Dictionary – Complete and Unabridged, 12th Edition 2014" entry via TheFreeDictionary.com)).

Regarding **claim 4**, the modified sole structure of Connell (i.e., Connell in view of VanDomelen, as discussed with respect to claim 1 above) further teaches *wherein the recess extends from a first end surface adjacent to a toe portion of the sole structure to a second end surface disposed in one of a forefoot region or a mid-foot region of the sole structure* (See Connell, Figs. 55 and 57B; recess formed in gap (156k) extends from a sidewall (174k) adjacent a toe portion to a sidewall (176k) in a forefoot region of

the sole structure; Examiner notes that the term "portion" is very broad and merely means "a section or quantity within a larger thing; a part of a whole" (Defn. No. 1 of "American Heritage® Dictionary of the English Language, Fifth Edition" entry via TheFreeDictionary.com); Examiner notes that the term "region" is very broad and merely means "any large, indefinite, and continuous part of a surface or space" (Defn. No. 1 of "Collins English Dictionary – Complete and Unabridged, 12th Edition 2014" entry via TheFreeDictionary.com)).

Regarding **claim 5**, the modified sole structure of Connell (i.e., Connell in view of VanDomelen, as discussed with respect to claims 1 and 4 above) further teaches *wherein at least one of the first end surface or the second end surface is spaced apart from each of the first bladder and the second bladder* (See Connell, Fig. 57B; each chamber (190k, 194k) is spaced from each sidewall (174k, 176k)).

Regarding **claim 6**, the modified sole structure of Connell (i.e., Connell in view of VanDomelen, as discussed with respect to claims 1 and 4 above) further teaches *wherein at least one of the first end surface and the second end surface is oriented at an oblique angle relative to a central axis that extends through a thickness of the first bladder* (See Connell Fig. 55; each sidewall (174k, 176k) is oriented at an oblique angle relative to a central axis extending through a thickness of either chamber (190k, 194k)).

Regarding **claim 7**, the modified sole structure of Connell (i.e., Connell in view of VanDomelen, as discussed with respect to claims 1, 4, and 6 above) further teaches *wherein the first end surface is oriented at a first oblique angle relative to the central axis of the first bladder and the second end surface is oriented at a second oblique*

angle relative to the central axis (See Connell Figs. 55; each sidewall (174k, 176k) is oriented at an oblique angle relative to a central axis of either chamber (190k, 194k)).

Regarding **claim 8**, the modified sole structure of Connell (i.e., Connell in view of VanDomelen, as discussed with respect to claim 1 above) further teaches *a second compressible midsole layer extending from the anterior end to the posterior end* (See Connell, Figs. 54-57A; second cushion (152k$_1$, 154k1) extends from anterior end to posterior end of sole structure inasmuch as Applicant's second cushion does and is made of compressible polymer foam; [0297]) *and having a top side and a lower side formed on an opposite side of the second compressible midsole layer than the top side, the lower side facing the upper side of the first compressible midsole layer* (See Connell, Figs. 55 and 57B; second cushion (152k$_1$, 154k$_1$) includes a top foot-facing side and a lower ground-facing side opposite from the top side and facing the upper side of the first cushion).

Regarding **claim 9**, the modified sole structure of Connell (i.e., Connell in view of VanDomelen, as discussed with respect to claims 1 and 8 above) further teaches *a plate disposed adjacent to the lower side* (See Connell, Figs. 55 and 57B; plate (268)) *and including a first plate portion attached to the first compressible midsole layer in a toe portion* (See Connell, Fig. 55 and 57B; first end (272) of plate (268) attached between first and second cushions in a toe portion; Examiner notes that the term "portion" is very broad and merely means "a section or quantity within a larger thing; a part of a whole" (Defn. No. 1 of "American Heritage® Dictionary of the English Language, Fifth Edition" entry via TheFreeDictionary.com)), *a second plate portion extending across the recess and attached to each of the first bladder and the second*

bladder (See Connell, Figs. 55 and 57B; intermediate portion (276) of plate (268) extending across recess and attached to each chamber (190k, 194k))*, and a third plate portion attached to the first compressible midsole layer in a mid-foot region of the sole structure* (See Connell, Fig. 55 and 57B; second end (274) of plate (268) attached between first and second cushions in a mid-foot region of the sole structure).

Regarding **claim 10**, the modified sole structure of Connell (i.e., Connell in view of VanDomelen, as discussed with respect to claim 1 above) further teaches *wherein the first bladder and the second bladder each include a tensile member* (See Connell, Fig. 57A; chambers (190k, 194k) are each fluid-filled chambers having tensile elements therein; [0312]).

Regarding **claim 11**, Connell teaches *a sole structure for an article of footwear* (See Connell, Figs. 54-57B; sole structure (14k))*, the sole structure comprising: a compressible midsole layer extending continuously from an anterior end of the sole structure to a posterior end of the sole structure* (See Connell, Figs. 54-57A; cushion (152k, 154k) extending between anterior and posterior ends of sole structure and made of compressible polymer foam; [0297]) *and including a top side, a bottom side formed on an opposite side from the top side* (See Connell, Figs. 55 and 57B; cushion (152k, 154k) includes an top foot-facing side and a bottom ground-facing side opposite from the top side)*, and a receptacle disposed between the top side and the bottom side* (See Connell, Figs. 55 and 57b; gap (156k) formed in upper surface of cushion (152k, 154k)*; a first bladder disposed within the receptacle adjacent to a lateral side of the sole structure* (See Connell, Figs. 54-57A; chamber (194k) within recess adjacent lateral side of sole structure)*; and a second bladder disposed within the receptacle adjacent to a*

medial side of the sole structure (See Connell, Figs. 54-57A; chamber (190k) within recess adjacent medial side of sole structure).

That said, Connell is silent to the compressible midsole layer *extending continuously from an anterior end of the sole structure to a posterior end of the sole structure.*

However, VanDomelen, in a related sole structure art, is directed to a sole structure including a foam element extending from forefoot region to heel region, the foam element including a recess in the forefoot region for housing a bladder (See VanDomelen, Figs. 17-20; abstract). More specifically, VanDomelen teaches the compressible midsole layer *extending continuously from an anterior end of the sole structure to a posterior end of the sole structure* (See VanDomelen, Fig. 20; midsole foam element (206) extends to form floor of recess (226) and extend continuously from anterior end to posterior end of sole structure; Examiner notes that "floor" of the recess is used to refer to a surface of a recess opposite the recess opening regardless of direction of recess extension; midsole foam element (206) forms a unitary structure and forms seat/socket for anterior cushioning arrangement (208b); [0079]).

It would have been obvious for one of ordinary skill in the art at the time of filing of the invention to form the lower cushion (first segment $152k_2$, second segment $154k_2$) of Connell as a unitary structure, wherein the lower cushion segments are connected across the bottom floor of the recess, and wherein the floor forms a seat/socket for the anterior chambers as disclosed by VanDomelen for a variety of reasons including for example, but not limited to, reducing a number of individual components and production steps required during manufacturing of the sole structure product and/or providing

additional cushioning material beneath the foot of the wearer, and further since it has been held that forming in one piece an article which has formerly been formed in two pieces and put together involves only routine skill in the art. See MPEP 21044.04(V)(B).

Regarding **claim 12**, the modified sole structure of Connell (i.e., Connell in view of VanDomelen, as discussed with respect to claim 11 above) further teaches *wherein the receptacle extends across an entire width of the compressible midsole layer from the medial side to the lateral side* (See Connell, Figs. 54-55 and 57A; receptacle formed at gap (156k) extends across entire width of cushion from medial to lateral sides).

Regarding **claim 13**, the modified sole structure of Connell (i.e., Connell in view of VanDomelen, as discussed with respect to claim 11 above) further teaches *wherein the receptacle is disposed in a forefoot region of the compressible midsole layer* (See Connell, Figs. 54-55 and 57B; receptacle formed at gap (156k) is disposed in a forefoot region of cushion; Examiner notes that the term "region" is very broad and merely means "any large, indefinite, and continuous part of a surface or space" (Defn. No. 1 of "Collins English Dictionary – Complete and Unabridged, 12th Edition 2014" entry via TheFreeDictionary.com)).

Regarding **claim 14**, the modified sole structure of Connell (i.e., Connell in view of VanDomelen, as discussed with respect to claim 11 above) further teaches *wherein the receptacle extends from a first end surface adjacent to a toe portion of the sole structure to a second end surface disposed in one of a forefoot region or a mid-foot region of the sole structure* (See Connell, Figs. 55 and 57B; receptacle formed in gap (156k) extends from a sidewall (174k) adjacent a toe portion to a sidewall (176k) in a forefoot region of the sole structure; Examiner notes that the term "portion" is very broad

and merely means "a section or quantity within a larger thing; a part of a whole" (Defn. No. 1 of "American Heritage® Dictionary of the English Language, Fifth Edition" entry via TheFreeDictionary.com); Examiner notes that the term "region" is very broad and merely means "any large, indefinite, and continuous part of a surface or space" (Defn. No. 1 of "Collins English Dictionary – Complete and Unabridged, 12th Edition 2014" entry via TheFreeDictionary.com)).

Regarding **claim 15**, the modified sole structure of Connell (i.e., Connell in view of VanDomelen, as discussed with respect to claims 11 and 14 above) further teaches *wherein at least one of the first end surface or the second end surface is spaced apart from each of the first bladder and the second bladder* (See Connell, Fig. 57B; each chamber (190k, 194k) is spaced from each sidewall (174k, 176k)).

Regarding **claim 16**, the modified sole structure of Connell (i.e., Connell in view of VanDomelen, as discussed with respect to claims 11 and 14 above) further teaches *wherein at least one of the first end surface and the second end surface is oriented at an oblique angle relative to a central axis that extends through a thickness of the first bladder* (See Connell Fig. 55; each sidewall (174k, 176k) is oriented at an oblique angle relative to a central axis extending through a thickness of either chamber (190k, 194k)).

Regarding **claim 17**, the modified sole structure of Connell (i.e., Connell in view of VanDomelen, as discussed with respect to claims 11, 14, and 16 above) further teaches *wherein the first end surface is oriented at a first oblique angle relative to the central axis of the first bladder and the second end surface is oriented at a second oblique angle relative to the central axis* (See Connell Figs. 55; each sidewall (174k,

176k) is oriented at an oblique angle relative to a central axis of either chamber (190k, 194k)).

Regarding **claim 18**, the modified sole structure of Connell (i.e., Connell in view of VanDomelen, as discussed with respect to claim 11 above) further teaches *wherein the compressible midsole layer includes a first cushion including a recess* (See Connell, Figs. 54-57A; first, lower cushion ($152k_2$, $154k_2$) as modified above; gap (156k) formed in first cushion forms recess; [0303]) *and a second cushion covering the recess to define the receptacle* (See Connell, Figs. 55 and 57B; second, upper cushion ($152k_1$, $154k_1$) at least partially covers recess formed by gap (156k) to define receptacle).

Regarding **claim 19**, the modified sole structure of Connell (i.e., Connell in view of VanDomelen, as discussed with respect to claim 11 above) further teaches *a plate* (See Connell, Figs. 55 and 57B; plate (268)) *including a first plate portion attached to the compressible midsole layer in a toe portion* (See Connell, Fig. 55 and 57B; first end (272) of plate (268) attached between first and second cushions in a toe portion; Examiner notes that the term "portion" is very broad and merely means "a section or quantity within a larger thing; a part of a whole" (Defn. No. 1 of "American Heritage® Dictionary of the English Language, Fifth Edition" entry via TheFreeDictionary.com)), *a second plate portion extending across the receptacle and attached to each of the first bladder and the second bladder* (See Connell, Figs. 55 and 57B; intermediate portion (276) of plate (268) extending across recess and attached to each chamber (190k, 194k)), *and a third plate portion attached to the compressible midsole layer in a mid-foot region of the sole structure* (See Connell, Fig. 55 and 57B; second end (274) of plate

(268) attached between first and second cushions in a mid-foot region of the sole structure).

Regarding **claim 20**, the modified sole structure of Connell (i.e., Connell in view of VanDomelen, as discussed with respect to claim 11 above) further teaches *wherein the first bladder and the second bladder each include a tensile member* (See Connell, Fig. 57A; chambers (190k, 194k) are each fluid-filled chambers having tensile elements therein; [0312]).

Response to Arguments

15. In view of Applicant's amendment, the search has been updated, and new prior art has been identified and applied. Applicant's arguments, filed December 3, 2024, with respect to the rejection of the claims under 35 USC 102 have been fully considered but are moot in view of the new grounds of rejection, as Applicant's arguments appear to be drawn only to the newly amended limitations and previously presented rejections.

Conclusion

16. Applicant's amendment necessitated the new ground(s) of rejection presented in this Office action. Accordingly, **THIS ACTION IS MADE FINAL**. See MPEP § 706.07(a). Applicant is reminded of the extension of time policy as set forth in 37 CFR 1.136(a).

A shortened statutory period for reply to this final action is set to expire THREE MONTHS from the mailing date of this action. In the event a first reply is filed within TWO MONTHS of the mailing date of this final action and the advisory action is not mailed until after the end of the THREE-MONTH shortened statutory period, then the shortened statutory period will expire on the date the advisory action is mailed, and any nonprovisional extension fee (37 CFR 1.17(a)) pursuant to 37 CFR 1.136(a) will be

calculated from the mailing date of the advisory action. In no event, however, will the statutory period for reply expire later than SIX MONTHS from the date of this final action.

17. Any inquiry concerning this communication or earlier communications from the examiner should be directed to MATTHEW R MARCHEWKA whose telephone number is (571) 272-4038. The examiner can normally be reached M-F: 9:00AM-5:00PM EST.

Examiner interviews are available via telephone, in-person, and video conferencing using a USPTO supplied web-based collaboration tool. To schedule an interview, applicant is encouraged to use the USPTO Automated Interview Request (AIR) at http://www.uspto.gov/interviewpractice.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, CLINTON T OSTRUP can be reached on (571) 272-5559. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Information regarding the status of published or unpublished applications may be obtained from Patent Center. Unpublished application information in Patent Center is available to registered users. To file and manage patent submissions in Patent Center, visit: https://patentcenter.uspto.gov. Visit https://www.uspto.gov/patents/apply/patent-center for more information about Patent Center and https://www.uspto.gov/patents/docx for information about filing in DOCX format. For additional questions, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/MATTHEW R MARCHEWKA/
Examiner, Art Unit 3732

/JAMESON D COLLIER/
Primary Examiner, Art Unit 3732